THE EIGHTH JUDICIAL CIRCUIT OF FLORIDA
ADMINISTRATIVE ORDER NO. 3.06

RETENTION OF MORTGAGE FORECLOSURE DOCUMENTS FILED IN CIVIL CASES

In order to ensure that paper versions of original notes, mortgages and lost note bonds filed in civil cases are retained by the Clerks of Court in all counties within the Eighth Judicial Circuit; and

WHEREAS, Florida Rule of General Practice and Judicial Administration 2.525(a) defines the "Official Court File" as "a set of electronic documents docketed and stored in a computer system maintained by the clerk under this rule. Documents in the official court file are originals for all purposes except as otherwise provided by statute or rule;" and

WHEREAS, with regard to the foreclosure of mortgages, section 702.015(4), Florida Statutes, requires that "the original note and the allonges must be filed with the court before the entry of any judgment of foreclosure or judgment on the note." and

WHEREAS, Florida Rule of General Practice and Judicial Administration 2.525(c)(2) states that unless prohibited by order, rule, or statute, after conversion to an electronic form, the clerk will dispose of paper documents submitted for filing or return them to the filer if the filer provides a self-addressed postage-prepaid envelope to the clerk at the time of submission.

WHEREAS, in order to maintain the paper version of the original note as required by statute, an order is needed requiring such paper versions of any note or allonge to be retained as part of the court file until such time as the property subject to the mortgage foreclosure proceeding is sold.

IT IS THEREFORE

ORDERED that:

The Clerks of Court in the Eighth Judicial Circuit must retain all mortgages, notes, and lost note bonds filed in civil cases. The Clerk shall not destroy, return, or send any of these instruments to any person absent a specific order by the Court, unless otherwise provided in this order. Such documents may be disposed in the same manner as other paper filings 90 days after

the property is sold or the appeal, if any, is finalized. In addition, such documents may be disposed in the same manner as other filings 90 days after the case is closed, after providing notice to the Plaintiff. If the Plaintiff requests the return of these documents after such time, the Clerk may return them without further order of the Court.

ORDERED ON this 12th day of August, 2026.

W. E. Davis

William E. Davis, Chief Judge